

HOUSE BILL 1446

By Todd

AN ACT to amend Tennessee Code Annotated, Title 3;
Title 4 and Title 8, relative to the Recognizing
Judea and Samaria Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Recognizing Judea and Samaria Act."

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 1, Part 4, is amended by adding the following as a new section:

(a) The general assembly finds and declares that:

(1) The regions known as Judea and Samaria ("Shomron" in Hebrew) are the ancestral heartland of the Jewish people, comprising the historical, spiritual, and geographical core of the Land of Israel;

(2) Judea and Samaria are repeatedly and explicitly referenced in the Hebrew Bible as the setting for key events that form the foundation of the Jewish people's religious and national identity. Among these references are:

(A) Abraham, the patriarch of the Jewish people, who first entered the Land of Israel at Shechem, located in Samaria, where God promised the land to His descendants, as recorded in Genesis 12:6-7;

(B) Abraham's subsequent purchase of the Cave of Machpelah in Hebron, in Judea, as a burial place for he and his wife Sarah, thereby making the first recorded land acquisition by a Jew in the Land of Israel, as recorded in Genesis 23 and 25;

(C) Jacob, Abraham's grandson, who had his prophetic dream of a ladder reaching heaven while in Bethel, in Samaria, as recorded in Genesis 28:10-22, and later purchased land near Shechem, building an altar to God there, as described in Genesis 33:18-20;

(D) Joseph, Jacob's son, who was buried in Shechem in fulfillment of the promise made to him by his family, as recorded in Joshua 24:32;

(E) The covenant ceremony between the children of Israel and God that was performed on Mount Gerizim (Mountain of Blessing) and Mount Ebal (Mountain of the Curse), both located in Samaria, as commanded in Deuteronomy 11:29;

(F) The Tabernacle, which was the center of Israelite worship prior to the construction of the First Temple in Jerusalem, stood in Shiloh, in Samaria, for several centuries, as recorded in Joshua 18:1;

(G) King David, who began his reign over the tribes of Israel in Hebron, in Judea, where he ruled for seven years before establishing his kingdom in Jerusalem, as described in 2 Samuel 2:1-4; and

(H) Jerusalem, which sits historically on the border of the tribal territories of Judah and Benjamin, and was purchased by King David from Araunah the Jebusite, as recorded in 2 Samuel 24:24, and became the eternal capital of the Jewish people;

(3) The return of the Jewish people to Judea and Samaria in modern times constitutes the fulfillment of numerous biblical prophecies, including, but not limited to, the following scriptures:

(A) "Again you shall plant vineyards on the hills of Samaria; the planters shall plant and shall enjoy them." (Jeremiah 31:5);

(B) "You, mountains of Israel, will produce branches and fruit for my people Israel, for they will soon come home." (Ezekiel 36:8); and

(C) "I will bring back my exiled people Israel; they will rebuild the ruined cities and live in them." (Amos 9:14);

(4) The names "Judea" and "Samaria" are the historically, biblically, and legally accurate terms for the region. "Samaria" is derived from the city established by King Omri, as recorded in 1 Kings 16:24. "Judea" refers to the territory of the Tribe of Judah, which included Jerusalem, Hebron, and surrounding regions;

(5) The areas of Judea and Samaria were illegally conquered by Jordan in Israel's Independence War in 1948. The term "West Bank" was imposed by the Hashemite Kingdom of Jordan during its illegal occupation of the region between 1948 and 1967. It was a political construct meant to reframe the land as the "west bank of the Jordan River" and sever it from its Jewish historical and biblical roots;

(6) The use of the term "West Bank" is a deliberate attempt to erase the Jewish identity of Judea and Samaria, and to obscure the deep historical, religious, and legal connections of the Jewish people to the land;

(7) During the Six-Day War of June 1967, the State of Israel liberated Judea and Samaria from Jordanian control, restoring Jewish access to their ancestral homeland and holy sites after nineteen (19) years of exclusion and desecration under Jordanian occupation;

(8) The strategic importance of Judea and Samaria to the State of Israel is irrefutable. Without Judea and Samaria, the width of Israel is only nine (9) miles at its narrowest point, between Netanya and Tulkarm, rendering the state militarily indefensible;

(9) For purposes of comparison, this narrow strip of land is:

(A) Shorter than the length of Dallas-Fort Worth Airport in Texas;

(B) Shorter than the distance between RFK Stadium and the Kennedy Center in Washington, D.C.;

(C) Equal to the distance between the John F. Kennedy and LaGuardia airports in New York City; and

(D) Equal to the distance between Columbia University and Wall Street in Manhattan;

(10) The highlands of Judea and Samaria overlook Israel's coastal plain, where more than seventy percent (70%) of the population and economic infrastructure is concentrated, including Tel Aviv, Jerusalem, and Ben-Gurion International Airport;

(11) Israel's control of Judea and Samaria is essential to its defense and deterrence capabilities. Hostile control of the area would place Israel's major cities and transportation arteries at risk;

(12) The ideological and cultural conflict over Judea and Samaria represents a broader civilizational struggle between Judeo-Christian values and radical Islamic ideologies that seek to undermine Western democratic principles and religious freedom;

(13) Supporting Jewish sovereignty in Judea and Samaria is an affirmation of:

(A) The moral and historical legitimacy of the Jewish people's connection to their land;

(B) The authenticity and enduring relevance of the Bible; and

(C) The values that underpin both Western civilization and American constitutional democracy;

(14) Numerous American towns and cities bear the names of biblical locations in Judea and Samaria, illustrating the deep cultural and spiritual bond between the United States and the biblical Land of Israel. These include, but are not limited to, Bethlehem, Pennsylvania; Hebron, Kentucky; Shiloh, Tennessee; Bethel, Ohio; and Mount Ephraim, New Jersey;

(15) Under the San Remo Resolution of 1920, the Allied Powers recognized the right of the Jewish people to reconstitute their national home in their ancestral land, including Judea and Samaria. This decision was incorporated into the Mandate for Palestine, approved by the League of Nations, and remains binding under Article 80 of the United Nations Charter;

(16) No international agreement or resolution has lawfully revoked or superseded these foundational legal rights. Therefore, Israel's sovereignty in Judea and Samaria is consistent with international law;

(17) The security and sovereignty of the State of Israel in Judea and Samaria serves the strategic interests of the United States by:

(A) Preventing the emergence of a terrorist-controlled state in the heart of the Middle East, which would not only threaten regional stability and Israel's security, but would almost certainly align itself against the United States in international forums such as the United Nations, and would provide a strategic foothold to hostile regimes, including China,

Russia, Iran, and North Korea, thereby endangering U.S. allies and interests across the region;

(B) Advancing long-term stability in the Middle East, as all areas in Judea and Samaria currently under Palestinian Authority control have historically been used to launch terrorist attacks against Israeli civilians. A further Israeli withdrawal from these areas would create a power vacuum and fertile ground for terrorist groups, including Hamas and Islamic Jihad, to expand their operations, destabilize neighboring states, and threaten regional peace; and

(C) Ensuring that America stands in defense of truth and moral clarity, by supporting the sovereignty of Israel over Judea and Samaria, thereby affirming the Judeo-Christian heritage upon which the United States was founded, and recognizing the Bible as a legitimate historical document and Israel as the rightful steward of its ancestral homeland;

(18) The land liberated by Israel from Jordan during the 1967 Six-Day War should be referred to by its historical names of "Judea" and "Samaria," with the land south of Jerusalem being considered "Judea" and the land north of Jerusalem being considered "Samaria"; and

(19) This state should no longer use the term "West Bank" in official government materials.

(b) As used in this section:

(1) "Official government material" means a guidance, rule, material, briefing, press release, communication, or work product document prepared by a state agency; and

(2) "State agency" means a department, division, office, board, commission, or institution of this state.

(c) Except as provided under subsection (d), a state agency shall not:

(1) Use the term "West Bank" to refer to Judea and Samaria in official government material; and

(2) Use state funds to create official government material that refers to Judea and Samaria as "West Bank."

(d) The executive head of a state agency may waive the prohibition under subsection (c) if the executive head:

(1) Determines that it is in the interest of this state to do so; and

(2) Submits a written explanation of the waiver no later than thirty (30) days after the date on which the executive head makes such a determination under subdivision (d)(1) to:

(A) Each member of the general assembly if the general assembly is in session; or

(B) The speaker of the senate and the speaker of the house of representatives if the general assembly is not in session.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.